

Track 1 — Chapter Build Pass

MPEP Chapter 900 · Prior Art, Search, Classification, and Routing

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: The Examiner's Search Process

This chapter is examiner-facing and mostly internal-process oriented, which is why it's lower yield for applicant-side exam questions — but the CPC system and the search/mapping duties do occasionally surface as standalone factual questions.

Rule 1: The Examiner's Search Duty (§904)

PLAIN ENGLISH

Examiners must conduct a **thorough search** of the prior art, covering the claimed invention and any reasonably related subject matter, generally including both U.S. and relevant foreign patent documents plus non-patent literature — not just the field the applicant happens to frame the invention in, but a field of search chosen based on the actual claimed subject matter.

EXAMPLE

An examiner reviewing a claim to a novel adhesive formulation should search relevant chemical patent classifications and literature broadly enough to capture related adhesive/polymer art, not just art specifically labeled the same way the applicant described it.

QUIZ

Should an examiner's search be limited strictly to the specific field the applicant used to describe the invention?

- (A) Yes, only the applicant's described field matters
- (B) No — the search should cover the claimed subject matter and reasonably related art
- (C) Yes, but only for chemical inventions
- (D) No, examiners are not required to search at all

Rule 2: Cooperative Patent Classification (CPC) (§905)

PLAIN ENGLISH

The **Cooperative Patent Classification (CPC)** system, developed jointly by the USPTO and the European Patent Office, organizes patent documents by technology for search purposes, replacing the older, U.S.-only classification system for most purposes. Examiners use CPC classifications to define and conduct their field of search.

EXAMPLE

An examiner searching for prior art relevant to a specific type of solar panel technology would identify the relevant CPC classification codes for that technology area as part of defining their search strategy.

QUIZ

What is the primary function of the Cooperative Patent Classification (CPC) system?

- (A) To calculate patent term adjustment
 - (B) To organize patent documents by technology for search purposes
 - (C) To determine maintenance fee amounts
 - (D) To assign inventorship
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Rule 3: Citing References Against Later Claims (§904.02)

PLAIN ENGLISH

Once found, prior art references are applied against specific claims in an Office action, and the examiner must identify which claim limitations are met by which parts of the reference (this connects to the compact prosecution principle covered in the Chapter 700 PDF) — a bare citation of a reference without mapping it to claim language is generally an insufficient rejection.

EXAMPLE

An examiner citing a reference against a claim should point to the specific disclosed structure/steps in that reference that correspond to each claim limitation, rather than simply listing the reference's title and asserting the claim is unpatentable over it.

QUIZ

Is it sufficient for an examiner to simply cite a reference's title without mapping it to specific claim limitations?

- (A) Yes, citation alone is always sufficient
 - (B) No — the rejection should map the reference's disclosure to the specific claim limitations
 - (C) Yes, but only for anticipation rejections
 - (D) No, only obviousness rejections require mapping
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. Should an examiner's prior art search be confined only to the specific terminology the applicant used?

- (A) Yes, always
- (B) No, it should reasonably cover related subject matter based on the claims
- (C) Yes, unless the applicant requests a broader search
- (D) No, examiners never need to search

2. What does the CPC system primarily help examiners do?

- (A) Calculate fees
- (B) Organize and locate prior art by technology area for search purposes
- (C) Determine claim scope
- (D) Assign a filing date

3. Is a bare citation of a reference's title, without connecting it to specific claim limitations, a sufficient rejection?

- (A) Yes
- (B) No — the rejection should map disclosure to claim limitations
- (C) Yes, if the reference is a patent rather than a publication
- (D) No, only for chemical claims

Memorize This: Key Tests & Terms

- Examiner search duty covers **reasonably related art** based on the claims, not just the applicant's framing.
- **CPC** (Cooperative Patent Classification) = joint USPTO/EPO system organizing art by technology for search.
- Rejections must **map** specific reference disclosure to specific claim limitations — bare citation isn't enough.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: The Examiner's Search Duty (§904)

Should an examiner's search be limited strictly to the specific field the applicant used to describe the invention?

Answer: B

The search obligation extends to reasonably related art based on the actual claims, not just the applicant's own framing or terminology — a broader duty than a narrow keyword search.

Rule 2: Cooperative Patent Classification (CPC) (§905)

What is the primary function of the Cooperative Patent Classification (CPC) system?

Answer: B

CPC is fundamentally a classification/organizational tool for prior art search, jointly maintained with the European Patent Office — not related to fees, term, or inventorship.

Rule 3: Citing References Against Later Claims (§904.02)

Is it sufficient for an examiner to simply cite a reference's title without mapping it to specific claim limitations?

Answer: B

A legally sufficient rejection requires connecting the reference's actual disclosure to the claim's specific limitations — this mapping requirement applies broadly, not just to one type of rejection.

Chapter Close-Out Quiz

1. (B)

The search duty extends to reasonably related subject matter based on the actual claims, not merely the applicant's chosen terminology.

2. (B)

CPC is a classification system for organizing patent documents by technology, used to define and conduct prior art searches.

3. (B)

A sufficient rejection connects specific parts of the reference's disclosure to specific claim limitations — bare citation alone is inadequate.